Iamdudum

Pius X · 1911-05-24 · English

ON THE CHURCH IN PORTUGAL.

Encyclical Letter of His Holiness Pius X., by Divine Provi- dence, Pope.

to the patriarchs, primates, archbishops, bishops and other ordinaries, in peace and communion with the apostolic see.

Venerable Brethren, Health and the Apostolic Benediction.

WE THINK, venerable brethren, it is well known to you all already that in Portugal the incredible course has been taken of oppressing the Church by all manner of savage deeds. For every one is aware that when the form of gov- ernment in that State was changed into a Republic there began to be sanctioned, one after another, measures breathing an implac- able hatred of the Catholic religion. We have seen the religious communities violently banished and for the most part driven in a harsh and inhuman manner from the confines of Portugal. We have seen that, owing to an obstinate desire of giving a profane character to every civil regulation and of leaving not a trace of religion in public life, the feast days of the Church have been expunged from the number of public holidays; the oath taken in courts of justice deprived of its religious character; a law on divorce passed in haste; the teaching of religious doctrine excluded from the public schools. Finally, passing over other things — for it would take too long to enter fully into the subject — we have seen the Bishops vehemently attacked by the same people and two of the most distinguished of them — the Bishops of Oporto and Beja, men notable for their integrity of life and for their great service to their country and the Church — cast forth from their sees. Although the new rulers of Portugal gave so many and such ex- traordinary examples of wanton tyranny, you know how patiently and how moderately this Holy See has acted towards them Indeed, we have taken the greatest care lest anything we might do should be regarded as an act of hostility towards the Republic We enter- tained some hope that they would sooner or later adopt sane coun- sels and by an agreement with the Church give satisfaction for the wrongs which had been done. But we were altogether deceived. They crown their wicked work by the promulgation of the evil and most pernicious law separating Church and State. Our apostolic duty would not permit us by any means to pass over in silence the infliction of such a serious wound on the rights and dignity of the Catholic religion. Wherefore, venerable brethren, we address

you in this letter and we denounce the baseness of these proceed- ings to the whole Christian world.

That the law of which we speak is something absurd and mon- strous is evident in the first place from the fact that it is laid down that the State is not bound to preserve public worship, as if it was not dependent on Him who is the founder and preserver of all things, both of men individually and of every association and com- munity of human beings. It also releases Portugal from the duty of observing Catholic worship, that religion which has always been the greatest support and ornament to the people of Portugal and which nearly all the citizens profess. But let us go on; it pleased the Government to sever such a connection between Church and State, one which was confirmed by solemn pacts. The severance being made, it surely was but right to set free the Church and to allow her the common rights and liberties enjoyed by every citizen and every honorable society of citizens. But quite the contrary has taken place ; for although this law is called a law of separation, in reality it is of such a character that it reduces the Church in externals by spoliation to extreme indigence, whilst as regards spiritual matters it places it in servitude and in a state of perse- cution under the Republic

And, first of all, as to external affairs, the Republic of Portugal separates itself from the Church in such a way that it leaves her absolutely nothing to provide for the dignity of the house of God, to support the sacred ministers and to discharge the many duties of charity and piety. For by this law not only is the Church deprived of all her possessions, movable and immovable, although justly obtained, but all power of acquiring anything for herself in the future is taken away. It is indeed decreed that corporate bodies of the citizens should have authority over public worship, but it is surprising how narrowly their power of receiving anything offered for that purpose is circumscribed. Moreover, the law re- moves and does away with the obligation binding Catholic citizens who were accustomed to give anything for the support or salaries of their clergy, forbidding that any demand of that kind should be made. It permits that Catholics should by voluntary collection provide for the expense of divine worship, but it orders that of the sum raised for that purpose a third part must be devoted to works of civil beneficence. To complete the injustice, the buildings which may in future be bought or erected for worship are, after a certain number of years, to be taken away from the legitimate possessors and to be used by the State without any indemnity being made to them.

But in matters which specially concern the sacred province of

the Church, the mockery of this separation is much more serious and more ruinous, being a measure which, as we have said, reduces the Church to an unworthy condition of slavery. First of all, the hierarchy is altogether put aside and ignored. If mention is made of clerics, it is done so in order that they may be forbidden to take any part in the regulations for religious worship. All that duty is entrusted to associations of laymen which have been established or will be established for the purpose of benevolence and established, indeed, according to State discipline on the authority of the Re- public, so that they may not in any way depend upon the power of the Church. If clerics are at variance with laymen as to the association that is to discharge that duty, or if there is a dis- agreement on the point amongst the laymen themselves, the settle- ment of the matter is left not to the Church, but to the decision of the Republic, which alone rules in these affairs. And in the provision for divine worship no place is left for the priest, as it is openly decreed and laid down that those who are ministers of religion cannot be chosen on the parochial committees, or be asso- ciated with the administration, or join in the work of the associa- tions I have mentioned — an arrangement than which nothing could be more unjust or more intolerable, inasmuch as it makes the position of the priest inferior to that of the other citizens in the very matter with which he is specially qualified to deal.

The bonds by which the Portuguese law binds and restricts the liberty of the Church are almost incredible — so much so that the state of affairs is a reproach to the institutions of the present day and to the common ideas of present day public liberties, and is unworthy of any humane and civilized people. For instance, it is decreed under heavy penalties that no communication from the Bishops must be put in type under any circumstances, and that it must not be read to the people, even within the walls of the churches, unless by permission of the Republic. Moreover, it is forbidden, unless authority is obtained from the Republic, to cele- brate any ceremony outside the precincts of the sacred buildings, to use pomp at any function, or to wear sacred vestments, or even the cassock itself. It is also forbidden to put up not only on public monuments, but even on- the houses of private individuals, anything concerning the Catholic religion ; but not at all forbidden to put up what may offend Catholics. likewise, it is unlawful to form a society for the promotion of religion and piety; such societies being treated in the same way as those vile ones which are formed for the perpetration of crime. Furthermore, whilst all citizens are allowed to do what they like with their own, in the case of the Catholics, contrary to what is right and just, the power

of doing so is inconveniently narrowed if they desire to give any- thing either for the benefit of the souls of the dead or to make better provision for public worship; and the pious gifts already made for this purpose have been impiously converted to other uses, the testaments and wishes of the givers being violated. In fine — a thing that is particularly serious and bitter — the Republic does not hesitate to interfere in the province of the Church's authority and to lay down a number of rules regarding a matter which, as it concerns the very formation of the clergy, the Church claims for herself as a subject of particular care, namely, the discipline and teaching of clerical students. Not only does the State compel those students to make the studies in science and literature which precede the theological course in public schools where the integrity of their faith, owing to the fact that the teaching is dissociated from God and the Church, is in the gravest peril, but the Republic interferes also in the domestic life and government of the semi- naries, and arrogates to itself the right of appointing the teachers, approving of the books and directing the sacred studies of the clerics. Thus what were known of old as the royal privileges are revived — claims which when there was peace between Church and State, betrayed most irksome arrogance; now that the State wants to have nothing to do with the Church, do they not appear to savor of a spirit of warfare and complete insanity? Nay, would you not say that this law was specially made to corrupt the morals of clerics and to stir them to rebellion against their superiors? For it both assigns certain pensions to those who have been suspended by their Bishops and grants special advantages to those who, wretchedly forgetful of their offices, shall form nuptial unions, and, shameful to relate, it extends the same benefits to the women and children in case any of them survive.

Finally, it was to be expected that the Republic, having despoiled the Portuguese Church of its possessions and having subjected it to an almost servile yoke, would endeavor to wrench it away from Catholic unity and the bosom of the Roman Church, and would prevent the Apostolic See from exercising its authority and its care with regard to religious affairs in Portugal. Accordingly by this law not even the orders of the Roman Pontiff may be pub- lished without public permission. In the same way a priest who may have obtained his theological degrees in any college established by Pontifical authority, even if he has made his theological course at home, will not be allowed to officiate. It is clear what the Republic's object is in this, namely, to prevent older clerics who desire to perfect and polish themselves in the highest studies from going to Rome, the centre of Christianity, where certainly more

readily than anywhere else, their minds would be strengthened by the truth of Christian doctrine and their souls by sincere faith and piety towards the Apostolic See. Passing over other things not less iniquitous, these are the principal points in this wicked law.

Wherefore as a sense of our apostolic duty prompts, in view of this insolence and audacity of the enemies of God, that we should vigilantly guard the dignity and honor of religion and preserve the rights of the Holy Catholic Church, we of our apostolic au- thority reprobate, condemn and reject the law separating Church and State in Portugal which makes no account of God, and re- pudiates the Catholic creed, which, violating the laws .of nature and of nations, breaks covenants solemnly entered into between Portugal and the Apostolic See, which thrusts out the Church from the just possession of her own property, which oppresses the liberty of the Church and perverts her divine constitution, and which, finally, treats with insult and contumely the majesty of the Roman Pontiff, the episcopal order and the clergy and people of Portugal, and even Catholics throughout the whole world. And whilst we complain in the strongest manner that a law of this kind should be passed, sanctioned and brought forward in public and solemnly expostulate with all who have prepared it or taken part in the work, we proclaim and announce that whatsoever it contains con- trary to the inviolable rights of the Church is null and void, and is to be so held.

Assuredly these difficult times, in which Portugal after war has been publicly proclaimed against religion is in a state of agitation, bring us great anxiety and sorrow. For we grieve at the sight of so many evils which oppress a people very dear to us; we are troubled by the expectation that something worse will happen unless those who are at the head of affairs come to a sense of duty in time. But, venerable brethren, the eminent virtue shown by you who rule the Church in Portugal and the fervor of the clergy, admirably harmonizing with that virtue, greatly console us and afford the strong hope that with God's help things will improve there sooner or later. For undoubtedly you all were influenced not by thoughts of your own security or convenience, but of duty and of the dignity of your office when lately you openly and freely repudiated with indignation the law of separation; with one voice you declared that you preferred to purchase the liberty of your sacred office by the loss of your property than to suffer slavery for a small payment ; when in fine you stated that your union with the Roman Pontiff could never be shaken either by craft or open attack. Be assured that those splendid proofs of faith, constancy and greatness of soul which you gave in the sight of the whole

Church were the source of no small pleasure to all good men, of honor to yourselves and of profit to distressed Portugal. Where- fore, continue, as you have resolved to do, to defend to the best of your strength the cause of religion with which is bound up the salvation of your common country; but see, above all, that both you among yourselves, and the Christian people with you, and all with this See of Blessed Peter earnestly maintain and uphold the closest union and concord. For the design of the authors of this odious law is what we have spoken of — not to separate the Portuguese Church, which they despoiled and oppressed (as they wish to make it appear) frond the Republic, but from the Vicar of Jesus Christ If with all your might you strive to meet and resist such a design and crime on the part of these men you will provide well for the interests of Catholic Portugal. Meanwhile, in accordance with the special love which we bear you, we shall pray to Almighty God to be good enough to favor your earnestness and your zeal.

And you, the prelates of the rest of the Catholic world, we ask that you should discharge the same duty in this time of need on behalf of the troubled brethren in Portugal.

As an augury of divine blessings and a proof of our good will we lovingly impart the apostolic benediction to you all, venerable brethren, and to your clergy and people.

Given at St. Peter's, Rome, on the 24th May, the feast of Our Blessed Lady Help of Christians, in the year 191 1, the eighth of our pontificate. Pius X., Pope.

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